

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
Chadon Morris,

Plaintiffs

-against-

City of New York, Police Officer Terrence Sloan,
Tax # 951271 of the 101 Precinct, Police Officer Scott
Edwards, Tax # 948385 of the 101 Precinct, Sergeant
Michael Juliano, Shield 5362 of Detective Bureau,
Lieutenant Brian Padovani, Tax # 944872 of the 101
Precinct and New York City Police Officers John Doe,Defendants
-----XIndex Number:
Date Purchased:
Date Filed:

SUMMONS

Plaintiff's residence is:
120 Beach 19th Street
Far Rockaway, NY 11691

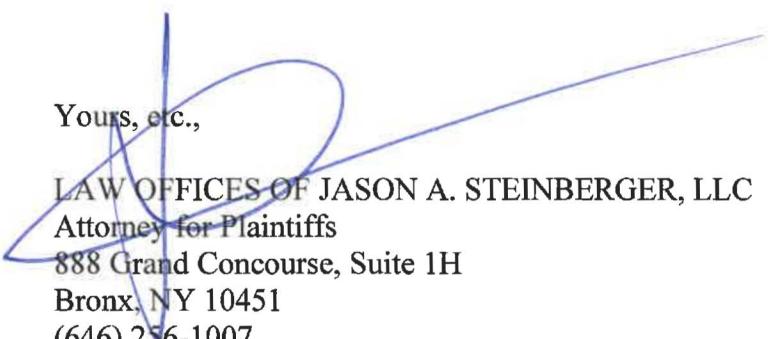
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Queens County.

Dated: March 11, 2021
Bronx, NY

Yours, etc.,



LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

To: City of New York

Police Officer Terrence Sloan, Tax # 951271 of the 101 Precinct

Police Officer Scott Edwards, Tax # 948385 of the 101 Precinct

Sergeant Michael Juliano, Shield 5362 of Detective Bureau

Lieutenant Brian Padovani, Tax # 944872 of the 101 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

Chadon Morris, :

Plaintiffs : VERIFIED COMPLAINT

-against- :

City of New York, Police Officer Terrence Sloan, :
Tax # 951271 of the 101 Precinct, Police Officer Scott
Edwards, Tax # 948385 of the 101 Precinct, Sergeant :
Michael Juliano, Shield 5362 of Detective Bureau, :
Lieutenant Brian Padovani, Tax # 944872 of the 101 :
Precinct and New York City Police Officers John Doe, :

Defendants :

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Chadon Morris, (hereinafter referred to as "MORRIS") resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Police Officer Terrence Sloan, Tax # 951271 of the 101 Precinct, (hereinafter referred to as "SLOAN") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Scott Edwards, Tax # 948385 of the 101 Precinct, (hereinafter referred to as "EDWARDS") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Sergeant Michael Juliano, Shield 5362 of Detective Bureau, (hereinafter referred to as "JULIANO") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Lieutenant Brian Padovani, Tax # 944872 of the 101 Precinct, (hereinafter referred to as "PADOVANI") was employed by the New York City Police Department.

6. That at all times hereinafter mentioned, New York City Police Officers John Doe, the officers involved in the arrest of Plaintiff, (hereinafter referred to as "DOES") were employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

9. On or before about August 20, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

10. On October 21, 2020 amended notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

11. That on or about October 21, 2020, a hearing required by Municipal Law 50-H was held.

At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.

12. That on or about July 4, 2019 at approximately 11:30PM in the vicinity of 169 Seagirt Bouelvard and 17 Street, Bronx, NY Plaintiff was observed his cousin speaking with uniformed police officer.

13. That Plaintiff walked towards where his cousin and the uniformed police officer were standing.

14. That Plaintiff then observed an unknown male strike another unknown male with a closed a fist.

15. That SLOAN, SCOTT, JULIANO and PADOVANI arrived at the location.

16. That DOES tackled Plaintiff to the ground whereupon he was handcuffed and arrested.

17. That at no time did Plaintiff engage in any criminal or unlawful conduct.

18. That at no time did Plaintiff touch, grab or attempt to do the same to JULIANO or PADOVANI in an effort to prevent them, form making a lawful arrest of another person.

19. That despite Plaintiff not engaging in such conduct described above, SCOTT claimed to have observed such conduct.

20. That having no lawful right to arrest Plaintiff, SLOAN arrested Plaintiff.

21. That after Plaintiff was arrested, he was transported to the 101 precinct.

22. That after Plaintiff arrived at the 101 Precinct he was placed into a cell with other male prisoners.

23. That after being held for several hours at the 101 Precinct, Plaintiff was transported to Queens County Central Booking located at 120-05 Queens Boulevard, Queens, NY.

24. That on or about July 6, 2019 Plaintiff was arraigned on docket CR-021103-19QN wherein he was charged with Obstructing Governmental Administration and Resisting Arrest.

25. That at the time of Plaintiff's arraignment, he was released on his own recognizance and ordered to return to court.

26. That on and between July 6, 2019 and August 11, 2020 Plaintiff made numerous court appearances until that matter was dismissed upon application of the Office of the Queens County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

29. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

30. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

33. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

34. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec. 1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

43. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by claiming that Plaintiff obstructed governmental administration despite knowing Plaintiff committed no such act. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. At all times pertinent hereto, SLOAN, SCOTT, JULIANO, PADOVANI and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

46. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SLOAN, SCOTT, JULIANO, PADOVANI and DOES committed within the scope of their employment.

47. That the City of New York and New York City Police Department knew that the 44 precinct targeted members of the of African descent and continued to employ DOES.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

48. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SLOAN, SCOTT, JULIANO, PADOVANI and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

50. The City of New York and New York City Police Department were aware that SLOAN had numerous Civilian Complaint Review Board complaints against him despite such, continued to employ SLOAN.

51. The City of New York and New York City Police Department were aware that EDWARDS had numerous Civilian Complaint Review Board complaints against him despite such, continued to employ EDWARDS.

52. The City of New York and New York City Police Department were aware that JULIANO had numerous Civilian Complaint Review Board complaints against him despite such, continued to employ JULIANO.

53. The City of New York and New York City Police Department were aware that PADOVANI had numerous Civilian Complaint Review Board complaints against him despite such, continued to employ PADOVANI.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

54. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

56. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

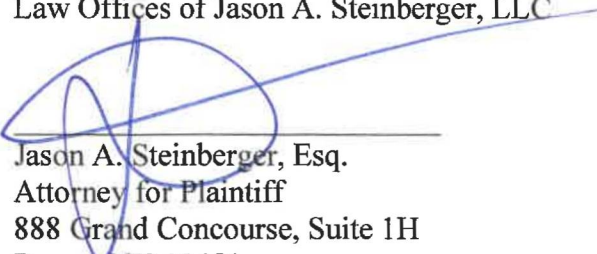
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC



Jason A. Steinberger, Esq.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 11, 2021



Jason A. Steinberger